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OPPONENT TESTIMONY - SB174
TESTIMONY OF DONALD C. HUBIN, Ph.D.
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JUDICIARY COMMITTEE
OHIO HOUSE, 136TH GENERAL ASSEMBLY
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Chairperson Thomas, Vice Chair Swearingen, Ranking Member Synenberg and members of the House Judiciary Committee, thank you for the opportunity to provide opponent testimony on SB174.

My name is Don Hubin, I'm an Emeritus Professor of Philosophy at the Ohio State University and the Founding Director Emeritus of the OSU Center for Ethics and Human Values. I'm also the Chair of the National Board of National Parents Organization. NPO is the nation's largest and most effective shared parenting organization, with chapters in 36 states. We work to promote children's best interest by strengthening the bonds between children and their fit and loving parents when those parents live apart.

According to proponents of SB174, the bill seeks to enact into law the recommendations of the 2001 Ohio Task Force on Family Law and Children and the 2005 recommendations of the Supreme Court of Ohio's Advisory Committee on Children, Families & the Courts, a body to which I was invited to testify these many years ago. Proponents point to the objective of reducing the adversarial nature of decisions about parental responsibilities and encouraging parents to share in the responsibilities of raising their children and courts to maximize the time the children have with each parent.

These are fine objectives; NPO fully endorses the *goals* of SB174. But we believe that the methods SB174 seeks to employ to achieve these goals are inadequate and, in some cases, counterproductive.

In previous testimony on the bill—testimony before the Senate Judiciary Committee—I noted the positive elements of the bill and focused my comments on the serious problems with the bill. Some of those problems have been addressed in the substitute bill now before the Committee. However—and I want to emphasize this—despite the positive

rhetoric in the bill and the lofty goals of the sponsors and proponents, this bill is still seriously flawed because it maintains a system of total judicial subjectivity. By refusing to establish a clear legal baseline, it guarantees that custody battles remain a high-stakes gamble. In the absence of a presumption that both parents will remain fully and equally engaged in their children's lives, parents fear the worst and respond accordingly. The best defense is often a good offense, so some parents, sometimes at the urging of their attorneys, will lead with everything bad they can think of about the other parent. We should not be surprised that parents fight when we've set up for them a Hunger Games approach to post-separation parenting arrangements.

Proponents of this bill, apparently motivated in large part by the desire to forestall the prospect of a true equal shared parenting bill, describe equal shared parenting presumptions as creating "a rigid mandate" or "*automatically* awarding equal parenting time." This is ridiculous on its face, of course. Such presumptions are rebuttable and the court retains discretion to issue orders to protect both children and parents from harm. Sponsors of this bill testified that "50/50 is the starting point of this legislation." But it's not. You establish a starting point by creating a rebuttable presumption. And SB174 does not create a presumption that equal shared parenting is in the best interest of the child. Instead, it denies that there is any starting point.

Proponents of this bill apparently believe that the positive language in the bill, together with a requirement that courts must give their reasons for rejecting a request for equal parenting time, will change the behavior of courts in making custody decisions. There are reasons for great skepticism.

- **Cultural Inertia:** 25 years after this General Assembly replaced "visitation" with "parenting time," 30 Ohio counties still use the outdated, offensive language that reflects a mindset that the child is raised by one parent and only visits the other.
- **Existing Default Orders:** 45 Ohio counties still rely on archaic "every other weekend" default schedules, treating one fit parent as a mere visitor.

Some of those 45 counties didn't even say that these schedules apply "in the absence of parental agreement" to a different schedule. They simply informed parents, many of whom are not represented by counsel, that "parenting time [or often "visitation"] shall be as follows …" Presumably, all of these 45 courts believe that the "every other weekend" schedules are typically best for children or they wouldn't still provide them as default schedules. Why should anyone think that these courts will have a change of heart because of the positive language in SB174? Why should anyone think that the mere requirement to give a reason for overriding a request for equal shared parenting, even a joint request

from both parents, is going to change these judges' minds about what custody orders to impose on families.

Another reason for skepticism is this. The two reports that proponents of SB174 claim motivated the bill were published in 2001 and 2005. Proponents would have us believe that the Ohio Bar Association and the Ohio Association of Domestic Relations Judges were assiduously studying these issues for a quarter of a century and, after all that hard work, produced SB174. But it really looks more like these family law experts spent about 20 years ignoring the recommendations in these reports and the last five working to head off a change in Ohio law to create a true equal shared parenting starting point.

Opponents of the bill, including Representative Williams who initially opposed it, questioned the constitutionality of several provisions of the bill. Changes were made to address some of these concerns. But some remain. In order to try to bring the bill in line with the U.S. Supreme Court's decision in *Troxel v. Granville* (530 U.S. 57 (2000)), the bill has been amended to require courts to give "special weight to the joint parenting plan filed by the parents or legal custodians" (§3109.046(A)). Unfortunately, the bill fails to define "special weight".

There is, though, case law on this matter. In *Harrold v. Collier* (107 Ohio St.3d 44, 2005-Ohio-5334), the Ohio Supreme Court noted that the U.S. The Supreme Court overruled the State of Washington's decision in the *Troxel* case because "*the trial court disregarded the traditional presumption that a fit parent acts in the best interest of his or her child*" (emphasis added). Prior to that decision, the Seventh District Court of Appeals of Ohio ruled:

> The "special weight" requirement, as illuminated by these prior Supreme Court cases, means that the deference provided to the parent's wishes will be overcome only by some compelling governmental interest and overwhelmingly clear circumstances supporting that governmental interest. (*Oliver v. Feldner*, 149 Ohio App.3d 114 2002-Ohio-3209, at p. 23)

Sponsors of SB174 have nevertheless resisted adding to the bill an explicit presumption that fit parents act in the best interest of their children. One might think that this omission doesn't matter because the U.S. Supreme Court has the final word on what is consistent with the constitution and, so, the presumption that fit parents act in the best interest of their children is still the law of the land. But that would be naive. It does matter. Leaving 'special weight' undefined in the statute is a recipe for endless appellate litigation. Explicitly codifying the presumption that fit parents act in their children's best interests doesn't create new law—it prevents Ohio judges from committing constitutional errors that will ultimately be overturned on appeal.

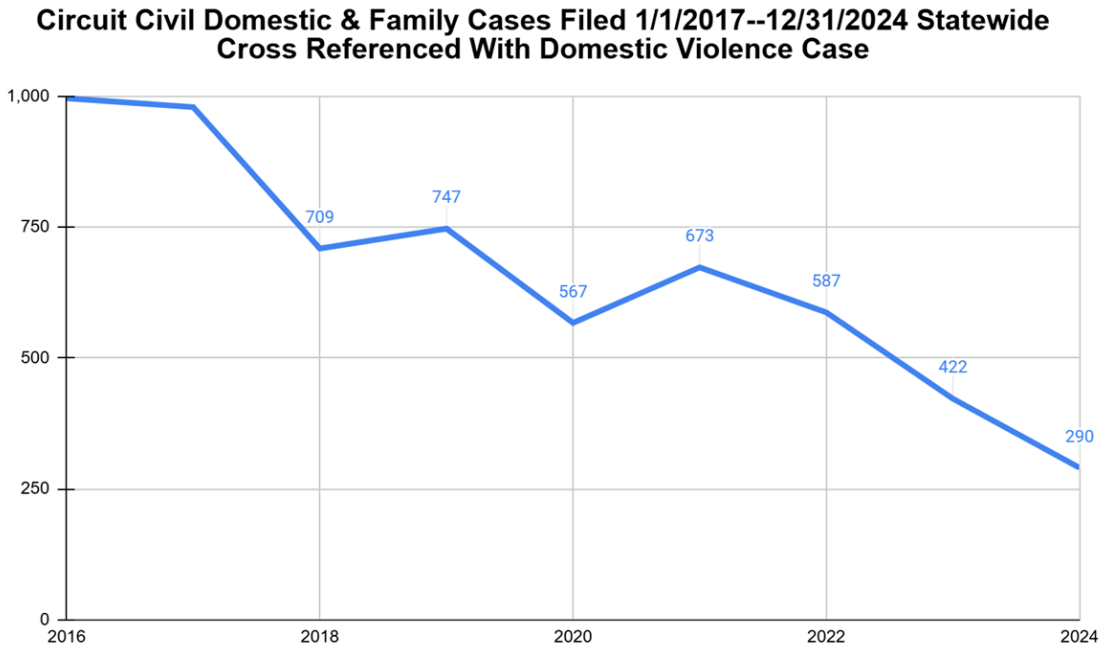
A Model for the Country?

In sponsor testimony, Representative Tims asked Senator Gavarone if there were examples of laws like this in other states. Senator Gavarone said she knew of none. Nor do we.

Meanwhile, we have hard, multi-year data from states that enacted a true, rebuttable presumption of equal shared parenting. The results are not minor; they are staggering. The states for which we have multiple years of data have experienced drops—sometimes dramatic drops—in child maltreatment.

State	Year of ESP Enactment	# of Child Victims at Enactment	# of Child Victims in 2024	Change	Child Victim Rate (per 1,000) at Enactment	Child Victim Rate (per 1,000) 2024	Change
Kentucky	2018	23,752	14,505	-38.90%	23.6	14.1	-40.30%
Arkansas	2021	9,616	6,657	-30.80%	13.6	9.5	-30.15%
West Virginia	2022	5,510	5,110	-7.30%	15.5	14.7	-5.20%

States that adopted presumptions of equal shared parenting have also seen drops in the rates of intimate partner violence. The Supreme Court of Appeals of West Virginia *Annual Statistics Report on Circuit, Family, and Magistrate Court Judges*, reports that between 2021 (the year before the law took effect) and 2024, the number of cases of domestic violence filed in family courts dropped by more than 4% from 8,979 to 8,606. In Arkansas, those counties that reported domestic violence cases saw a drop of more than 11% between the year before enactment and 2024. These are statistics about overall domestic violence cases—many of which are unrelated to divorce. In Kentucky, we have compelling evidence from the Kentucky Administrative Office of the Courts. It crosslisted Domestic & Family cases with Domestic Violence cases. The data are dramatic. There were 979 such cases in 2017. Since the enactment of Kentucky's equal shared parenting law, that has trended downward and now stands at 290. ***This is a drop of more than 70%***!



Ohio could learn from these states' experiences. However, proponents of SB174 ask you to take a blind bet on an untested, homegrown mechanism. Senator Gavarone noted that, while there are no similar laws in existence, the bill is the "culmination of 20 years of work and more than a hundred people … and this legislation *should* be the model if you look at what this does" (emphasis added). We agree that if this bill is enacted into law, we should look at *what it does*. That is different, though, from looking at what proponents hope or anticipate it will do.

While we think it wiser to follow tested approaches to revising family law to promote children's best interest by keeping both parents fully engaged in raising them, it appears, that the Ohio legislature is on a course to take this bet on the untested approach. And if that is correct, we have a final recommendation we urge the House to take very seriously.

- ***Performance Measurement:*** Include in the legislation a requirement to generate and evaluate metrics for success.

What are the positive outcomes proponents tout that we should measure?

- ***Reduced Parental Conflict:*** We should measure the rate of cases that are settled without litigation and the time and cost of litigation. If SB174 is successful in achieving its goals, these should go down.
- ***Increased Shared Physical Custody:*** We should measure the frequency with which parents are operating under a substantially equal parenting time schedule. We

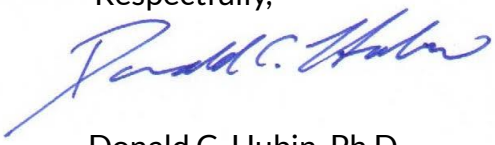
know that children typically do best under this arrangement and, if SB174 is successful, we should expect the frequency of such arrangements to increase.

- ***Reduced Family Violence:*** If SB174 truly reduces parental conflict and focuses all parties on the best interest of the child, we should expect it to help reduce the family violence that sometimes arises for the first time during parental separation and custody battles. We should track this and see how Ohio compares with favorable results of those states that have adopted presumptions of equal shared parenting.

The most important reason for tracking these metrics is that they bear directly on the well-being of children and their parents. There is also, though, a fiscal reason to track this. According to the bill's Fiscal Note & Local Impact Statement, the bill will impose costs on courts of common pleas and possibly on child support enforcement agencies as well as decreasing fee revenue. Responsible management of taxpayer dollars mandates that there be metrics in place to determine whether this legislation, which is untried anywhere in the country, is successful in achieving its declared ends. It is only after we can see, and verify what this legislation *actually does* that it can serve as a model for the nation.

Chairperson Thomas and members of the committee, thank you again for allowing me to provide testimony in opposition to SB174.

Respectfully,



Donald C. Hubin, Ph.D.